

Calendar Line 2

Case Name: Alan Pineda v. Mike Counsil Plumbing LLC

Case No.: 25CV474386

Specially appearing defendant Mike Counsil Plumbing LLC moves to quash service of summons. Notice is proper and the motion is opposed by plaintiff Alan Pineda.

Plaintiff filed the original and still operative complaint in September 2025, alleging the following causes of action against Defendant: (1) breach of contract; (2) wrongful termination; (3) retaliation; (4) false advertising and misrepresentation; (5) failure to provide written offer letter; (6) constructive discharge; and (7) lost wages.

Legal Standard

A motion to quash under Code of Civil Procedure section 418.10, subdivision (a)(1) contests personal jurisdiction where the statutory requirements for proper service are not met. (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 390.)

When a defendant contends that service failed to place them within the trial court's jurisdiction, the plaintiff must provide evidence of effective service. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 387.) A proof of service declaration will create a presumption of proper service if the declaration complies with all statutory requirements. And that presumption may be rebutted by contrary evidence. (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1163 (*Lebel*); *Fernandes v. Singh* (2017) 16 Cal.App.5th 932, 941, fn. 6.)

A proof of service must identify the time, place, and manner of service, in addition to the individual served and the individual's title or authority to accept service. (Code Civ. Proc., § 417.70, subd. (a).) Service on a corporation requires delivery of the summons and complaint to an individual who may be served on behalf of the corporation (e.g., an agent for service of process or a general manager). (Code Civ. Proc., § 416.10.)

Discussion

Defendant argues that service was improper because (1) the filed proof of service is incomplete; and (2) service was rendered on an individual not authorized to receive service of process.

Plaintiff filed an affidavit of service in October 2025 that was not on the mandatory proof of service of summons form (POS-010). The clerk's office accepted the document for filing, but attached a civil filing rejection letter indicating that a "Proof of Service Summons requires mandatory form POS-010." Plaintiff filed the mandatory POS-010 form in November 2025. That November filing identifies the documents served, but omits the date, time, and manner of service. It further omits the identity of the individual served and that person's authority to accept service. (The court takes judicial notice of these court records on its own motion. (Evid. Code, § 452, subd. (d).)) The proof of service is defective under Code of Civil Procedure section 416.10. It therefore does not create a rebuttable presumption of proper service. (*Lebel, supra*, 210 Cal.App.4th at p. 1163.)

Reviewing the court filings and evidence submitted with defendant's motion to quash, the court cannot conclude proper service occurred. Defendant provides the declaration of Katherine Rios. Rios declares she is the individual who was served. Rios declares she informed the process server that Loza was not in the office; Rios never identified herself as Loza. (Declaration of Katherine Rios, ¶¶ 3, 6.) Rios does not have authority to accept service as Defendant's receptionist or call center representative. (*Id.* at ¶ 1; Domingue Decl., ¶ 6; see Code Civ. Proc., § 416.10, subd. (b).) The October 2025 affidavit of service signed by Luis Barragan does not establish that an authorized individual was served. The affidavit merely states, "Walked in to the front desk and asked for Patty Loza and was greeted with yes and I said I have legal documents for the business Mike counsil plumbing and said you've been served." (Affidavit of Service, filed 10/23/2025.) Plaintiff declares that that he retained a registered process server who "personally served Patty Loza at Defendant's business address." (Plaintiff dec., filed 5/26/26, ¶ 3.) But plaintiff's declaration is not based on personal knowledge because there is no indication he was personally present at the time of service. (*Parsons v. Superior Court* (2007) 149 Cal.App.4th Supp. 1, 7 ["The jurisdictional facts must be proved by competent evidence at the hearing on the motion to quash."])

Plaintiff argues defendant waived any service defect by filing the instant motion to quash. But a special appearance "does not confer jurisdiction on the court for any purpose other than determining the question of jurisdiction over the person." (*In re Marriage of Obrecht* (2016) 245 Cal.App.4th 1, 8, citation omitted.) To the extent Plaintiff asserts that Defendant's filing of the declaration of demurring or moving party in support of automatic extension constitutes a general appearance, Plaintiff cites no authority for that proposition. (*Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 [arguments not supported by reasoned argument and legal authority are forfeited].) And actual notice of an action does not cure defective service of a summons and complaint. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 414.)

Conclusion

Defendant's motion to quash service of summons is GRANTED. The parties are encouraged to meet and confer to facilitate proper service. The currently scheduled order to show cause hearing regarding Plaintiff's failure to appear, scheduled for August 13, 2026, at 10:00 a.m. in Department 10, will also be an order to show cause hearing regarding Plaintiff's failure to serve Defendant. The court will prepare the order.

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Calendar Lines 4 through 6**Case Name:** Austin Cortez v. David Lee**Case No.:** 25CV465227

At issue are three motions to compel discovery by plaintiff Austin Cortez against defendant David Lee: a motion to compel further responses to special interrogatories, set one; a motion to compel further responses to a request for the production of documents, set one; and a motion to compel further responses to form interrogatories, set one. Notice is proper and the motions are opposed by defendant. The case is a negligence action related to an automobile accident.

It appears these motions could have been largely avoided had plaintiff undertaken greater efforts to meet and confer before filing the motions. The extent of plaintiff's meet and confer efforts appears to have been a single meet and confer letter sent to defense counsel. Defense counsel indicates he did not become aware of that letter until after the motions to compel were filed. Plaintiff's meet and confer efforts were deficient. (Code Civ. Proc., § 2016.040.) For this reason, plaintiff's requests for sanctions related to the motions are DENIED.

Special Interrogatories, Set One

The motion to compel related to special interrogatory Nos. 17, 18, 19, 20, 21, 26, and 27. Defendant supplemented his responses after the motion to compel was filed, and the motion is now largely moot. Plaintiff's reply focuses on a single special interrogatory that he argues remains deficient: No. 17. That interrogatory asks defendant to "State where defendant purchased the subject grill that fell from the vehicle defendant was driving at the time of the incident." (Some capitalization omitted.) Defendant's amended response is, "Defendant does not call where his purchase the subject grill." Plaintiff argues that response is unintelligible. The court agrees that, without clarification, the response is not clear. It is possible defendant meant to state: "Defendant does not *recall* where *he purchased* the subject grill." The response also does not indicate whether defendant undertook the "reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations" required by Code of Civil Procedure section 2030.220.

The motion is GRANTED IN PART. Defendant is ordered to clarify its response to special interrogatory No. 17 no later than July 9, 2026, consistent with the foregoing. Plaintiff's request for sanctions is denied.

Request for Production, Set One

The motion to compel related to a single request for production—No. 18—which sought documents about ownership of the grill that fell from defendant's vehicle. Plaintiff's reply acknowledges that defendant served code compliant amended responses after plaintiff filed the motion. The motion is DENIED AS MOOT. Plaintiff's request for sanctions is denied.

Form Interrogatories, Set One